

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #11	CCRB Case #: 201507684	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/09/2015 1:15 PM	Location of Incident: 113th Precinct stationhouse	Precinct: 113	18 Mo. SOL 3/9/2017	EO SOL 3/9/2017	
Date/Time CV Reported Thu, 09/10/2015 1:08 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 09/10/2015 1:08 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jessica Romance	03441	941641	113 DET
2. DT3 James Zozzaro	1741	942747	113 DET

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Jessica Romance	Off. Language: Det. Jessica Romance made remarks to § 87(2)(b) based upon her gender.	
B.DT3 Jessica Romance	Discourtesy: Det. Jessica Romance spoke discourteously to § 87(2)(b)	
C.DT3 Jessica Romance	Abuse: Det. Jessica Romance threatened to arrest § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On September 9, 2015, § 87(2)(b) went to the 113th Precinct station house to speak to Det. Jessica Romance and Det. James Zozzaro, both of the 113th Detective Squad, who had gone to her home earlier in the day while she was out, to discuss a previous complaint that § 87(2)(b) reported regarding money stolen from her bank account. § 87(2)(b)'s room-mate cried when she spoke to the detectives. Det. Romance and Det. Zozzaro questioned § 87(2)(b) regarding a photograph of man using § 87(2)(b)'s bank card. § 87(2)(b) became upset, and started to cry. Det. Romance allegedly told § 87(2)(b) “You and your friend are a bunch of crying females (**Allegation A**).” § 87(2)(b) reported that Det. Zozzaro left the room, at which point Det. Romance allegedly told her, “I’m gonna be honest with you; I think you’re full of shit (**Allegation B**).” Det. Romance went on to tell § 87(2)(b) that if the detectives determined that § 87(2)(b) knew the men who had used her bank card, she would come to arrest § 87(2)(b) (**Allegation C**). Following this discussion, § 87(2)(b) left the stationhouse. As she walked out, Det. Romance allegedly told her, “Please don’t fall because I doubt I’d put my coffee cup down to help you (**Allegation B cont’d**).”

There was no video footage of this incident because it transpired in the 113th Precinct stationhouse.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation over the phone and during her CCRB interview, but rejected it.
- On December 1, 2015, an inquiry was sent to the New York City Comptroller’s Office regarding whether § 87(2)(b) has filed a notice of claim in regards to this complaint. Results are pending and will be included in the case file upon their receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b)'s first with the CCRB (**Board Review 06**).
- Det. Romance has been a member of the NYPD for nine years, and has no substantiated CCRB allegations against her (Board Review 07).

Findings and Recommendations

Allegation A—Offensive Language: Det. Jessica Romance made remarks to § 87(2)(b) based upon her gender.

Allegation B—Discourtesy: Det. Jessica Romance spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that when she became upset while talking to Det. Romance and Det. Zozzaro, Det. Romance told her (referring to § 87(2)(b) and her room-mate, who had cried to the detectives earlier in the day), “You and your friend are a bunch of crying females.” When Det. Zozzaro left the room, Det. Romance allegedly told § 87(2)(b) “I’m gonna be honest with you; I think you’re full of shit.” § 87(2)(b) said that as she left the stationhouse, Det. Romance told her, “Please don’t fall because I doubt I’d put my coffee cup down to help you.”

Det. Romance did not recall the person to whom she and Det. Zozzaro spoke at § 87(2)(b)'s house or that person being upset. Det. Romance did not recall § 87(2)(b) crying during their conversation, and believed that § 87(2)(b) seemed more angry than upset. Det. Romance denied telling § 87(2)(b) "You and your friend are a bunch of crying females," or making any remark about § 87(2)(b) crying. Det. Zozzaro corroborated § 87(2)(b)'s report that her roommate was upset and crying when the officers visited their house. He also believed that § 87(2)(b) cried while speaking to the detectives. However, he denied that Det. Romance told § 87(2)(b) "You and your friend are a bunch of crying females," or said anything about § 87(2)(b) crying, or anything about § 87(2)(b)'s friend.

Neither Det. Romance nor Det. Zozzaro believed that Det. Romance was alone in the room with § 87(2)(b) at any point. Both Det. Romance and Det. Zozzaro testified that they conveyed to § 87(2)(b) that they did not believe that she was being completely honest and upfront about her role in the incident, but they did not characterize her behavior as lying. They also both denied that Det. Romance told § 87(2)(b) "I gotta be honest with you; I think you're full of shit," or used any profanity toward § 87(2)(b).

Initially, Det. Romance stated to the CCRB that § 87(2)(b) "threatened" to throw herself down the stairs, but she later clarified that § 87(2)(b) was leaning against the wall, and "stumbling" while hesitating to proceed down the stairs. Det. Romance also said that § 87(2)(b) was screaming so loudly that her voice could be heard throughout the entire stationhouse. Det. Romance did not recall whether she was holding a coffee cup upon § 87(2)(b)'s departure. She denied telling § 87(2)(b) "Don't fall because I doubt I'd put down my coffee cup to help you." Det. Zozzaro testified that § 87(2)(b) was irate and cursing as she left. He was not aware of § 87(2)(b) stumbling or falling as she left, and did not recall whether Det. Romance was holding a coffee cup at the time. Det. Zozzaro denied that Det. Romance told § 87(2)(b) "Don't fall because I doubt I'd put my coffee cup down to help you."

§ 87(2)(g)

Allegation C—Abuse of Authority: Det. Jessica Romance threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that Det. Romance told her that if the detectives determined that § 87(2)(b) was responsible for giving her bank card to those who used it, she would be arrested. Det. Romance and Det. Zozzaro both testified that they explained that to § 87(2)(b) that if they determined that she had in any way facilitated the activity that she had reported as fraudulent, she could be arrested on criminal charges. Both detectives also testified that if § 87(2)(b) had participated in the fraudulent activity, she could be arrested for filing a false report. § 87(2)(g)

§ 87(2)(g) [Redacted]
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§ 87(2)(g), § 87(4-b) [Redacted]
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Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date